THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT
In the matter between:
COMMRADEPOTATOE
&
VORTEXION

CASE DETAILS:
CASE NUMBER: 3
COURT: IceCarim CJ
DATE: 23 July 2024 (GMT)

CASE TEXT:

IceCarim:
@Vice President @Vortexion the Court invites your submissions whenever you are ready.
@President the Court invites you as amicus (friend of the court), and is interested to know whether you support the application, and, if so, to what extent?
Though, of course, you do not have to participate.

Vortexion:
Your honor my good time boy is there a template submissions must follow? Or are we free to make our case in whichever way shape or form we prefer.

CommradePotatoe:
Your honor I shall present my opening statement in a few hours once I am on the road.

Vortexion:
Objection your honor, I would like to suggest all of compot's points to be discarded

IceCarim:
Yeah you can present however you like
If the parties would like to have a voice hearing, I'm also open to that
If you need any guidance on the law, please feel free to ask
And the court will ask clarifying questions based on the submissions made

CommradePotatoe:
Your honor, there are two issues at play here, the power of the Swag Messiah to reject bills proposed on the third day of each month, and the power of the Swag Messiah to publicly shame citizens of the republic.

I would first like to direct attention to the power to deny bills. Although this power is limited to a single day of each month, it still interferes with the forum's power to enact, amend, and repeal bills. Section 52, Subsection 2 of the Constitution clearly states that the forum's power is subject only to the Constitution. This ability to interfere with the passage of laws on certain days could lead to legislators delaying the proposal of bills, even if they might be necessary for the well being of the republic. The lack of any specified timezone could lead to wide interpretations of when the third day of each month is, granting the Swag Messiah the power to deny bills for even more time. This power of the Swag Messiah poses a risk to the functioning of the national forum and its ability to carry out its duties.

I would now like to direct our attention towards the Swag Messiah's power to conduct so called "vibe checks" on citizens of the republic. What this entails is vague and unclear, as the act makes no effort to define or clarify what someone would be subject to during a "vibe check". Is this an interrogation of sorts? An arbitrary decision? I'm not sure. The bill does outline what should happen should someone fail a vibe check, a public shaming. What this would look like is anyone's guess, but I believe the use of shaming as a punishment for failing these erroneously defined vibe checks would be in flagrant violation of our fundamental values established in Section 1, Subsection 2. Section 10, Subsection 2 of the constitution states that no one should be subjected to cruel, inhuman, or degrading

treatment or punishment. To use shame and humiliation as a punishment at all is inconceivable in a peaceful and democratic society. Thank you.

Vortexion:
Objection your honor, hearsay

IceCarim:
Thank you Mr Vice President
The Court has some questions

How broadly must we interpret this ability to veto bills on the third day of every month?
Is it possible to interpret it in a way that minimises the interference with the Forum's constitutional duty?
Similarly, what does shame and humiliation mean?
And what about vagueness?

Vortexion:
Of course your honor, the Swag Messiah would simply be granted the ability to vote against a bill passed on the third day of any month

IceCarim:
And what democratic claim does the Swag Messiah have to doing so?
Considering that Forum members can vote because they're democratically elected

Vortexion:
That which is given to them by the power vested in this bill, naturally

IceCarim:
the Constitution is quite clear that Bills pass when 60% of Forum members support them
Does the Swag Messiah's vote count the same way as a regular Forum member?

Vortexion:
Additionally your honor, we believe that the process of conducting "vibe checks", wherein a randomly selected citizen is given a set of questions regarding their allegiance to the nation, depending on the answers to which they are either commended or given a derogatory role (of which the name is given up for debate), is a constructive way to encourage more nation-aligned thinking within the good people of the same

IceCarim:
What implications does this have for freedom of speech?

Vortexion:
Your honor, the Swag Messiah would only be given the ability to vote against a bill passed on the third day of any month, not for it, meaning that they may only tip the scale against a bill, not for

IceCarim:
So if I criticise the government I can be given an insulting role?
@Vice President I'm interested in your response to Vortexion's interpretation of the Bill
And I have a few questions about the scope of your case

Vortexion:
No, your honor, given the purpose of these checks, they are designed by a highly trained team of psychologists in order to identify extremely anti-national ideals
And by denouncing these individuals, we make them more visible to re-education groups and facilities which would otherwise not take notice of these people

IceCarim:
So the bill is not just about the Swag Messiah but actually introducing a police state?

Vortexion:

Not at all, your honor
I kindly request you re-iterate over my previous point

IceCarim:
If there are people who are so anti-Cortesia that we'd be fine taking away their freedom of speech, why wouldn't we just remove them from the nation

CommradePotatoe:
Well your honor, the Constitution outlines in Section 68 a very clear process for how a citizen can gain membership in the forum, by running for office, and then being elected by the citizens. The Swag Messiah is not an elected position, but an office appointed by the cabinet. If this power to "deny" bills proposed on the third day merely means that the Swag Messiah may vote against a proposed bill, it would still be creating a de facto extra MF for one day. One that has not been elected by the citizenry.
Vortexion:
The Swag Messiah would, simply put, be authorized to provide more apt care and re-education for those most in need of it

CommradePotatoe:
Feel free to ask away your honor

IceCarim:
In what circumstance do you imagine somebody being desired in the nation, but also so anti-Cortesia to be branded with a derogatory role?

Vortexion:
Surely you agree, your honor, that excommunicating people from our great nation is inferior to the more new-age and inclusive solution of re-education

IceCarim:
The only circumstance that comes to my mind is where the sentiment is not that serious

Vortexion:
Lest we be at risk of losing bright minds from our many millions of citizens

IceCarim:
And could you be clearer about whether you mean anti-national as in anti-Cortesia or anti-government?
Or is that the same thing?

Vortexion:
After all, the most well-versed men and women of science are often deviant
Yes of course, your honor, I am specifically refering to anti-government speech

IceCarim:
So what's the point of having elections if you can't say the government is doing a bad job?

Vortexion:
Of course, your honor, the target of the proposed vibe check may freely express their dissatisfaction with their government, but this process is not meant to identify those who think differently
It is meant to identify those with potentially unseen, dangerous and likely terrorist ideals

IceCarim:
The court doesn't quite understand your reasoning for withdrawing the claim about executions

Vortexion:
While I am certain of the capabilities of our secret service department in identifying potential threat vectors, the Swag Messiah would instead serve a more publically-visible role

IceCarim:

Why does the approval of an execution not necessarily imply that it will be carried out?
And is it appropriate for someone to just be floating around in the nation knowing there's an "approved execution" out against them?

CommradePotatoe:
Well your honor, with my clarification statement, I wanted to make it clear that I never intended to pursue action against it.

IceCarim:
I ask this because as things stand, say you were to succeed in your challenge
We'd be really only left with the Swag Messiah having the power to approve executions
And if the Swag Messiah only has one power, I can't imagine that power not being an effective one
Else why pass the Bill at all?

CommradePotatoe:
well my reasoning was that since the act states "as prescribed by law", and that no law currently exists that defines execution as a punishment, it simply has no force

IceCarim:
Thank you
@Vortexion (ass edition) how broadly do you view the power of the Swag Messiah to pass regulations incidental to the Bill?

CommradePotatoe:
should an act arise that outlines execution, I believe a case could be pursued against the legality of such a practice

IceCarim:
Why does the constitutionality of one bill depend on another bill passing?

Vortexion:

I would see the appointed Swag Messiah to be capable of suggesting and subsequently approving executions where matters of national safety or otherwise grave crimes are concerned

IceCarim:
Suppose this scenario

Vortexion:
(Your honor)

IceCarim:
The Swag Messiah approves executions in advance of a law prescribing it
That means if that law were to pass, any affected cortesian immediately has a bounty on them

Would the judiciary be involved in deciding on these punishments?
Or can the Swag Messiah apply the law all on their own?

CommradePotatoe:
I hadn't considered this angle your honor, is it possible to expand the scope of my case at this time?

IceCarim:
In the interests of justice we will allow this

Vortexion:
The judiciary would be suggested execution by the Swag Messiah, and if the judiciary agrees, the Swag Messiah would be capable of carrying out the same

CommradePotatoe:
thank you your honor

IceCarim:
But the Bill says the Swag Messiah can approve executions

Vortexion:
This is correct

IceCarim:
Why is that not a judicial or decisional function?
The Swag Messiah would be performing the judge's function, no?

CommradePotatoe:
I would like to expand to scope of my case to include the Swag Messiah's power to approve execution

IceCarim:
And I'm also interested in whether execution is a cruel, inhuman, or degrading punishment

Vortexion:
This is true, your honor

IceCarim:
Granted

Vortexion:
No, your honor, execution entails the swift removal of one's life from the mortal coil by all definitions, rather than killing someone in any form of videogame

IceCarim:
And what exactly is "the mortal coil"?

Vortexion:
The real world as percieved in the 3rd dimension, your honor

IceCarim:

And it is not open to us to interpret “execution” to mean killing someone in-game?

Vortexion:
This is correct, your honor

IceCarim:
Here’s a question for you both: every provision in a Bill must clear the low threshold of rationality
That means each provision must have a rational connection to achieving a legitimate governmental purpose

Vortexion:
Objection your honor, hearsay

IceCarim:
What is the legitimate purpose of:

1. The 3rd day veto
2. The vibe checks
3. The execution approvals?

Vortexion:

1. To provide an additional opinion of a third, neutral party to the passing of certain bills
2. To identify and subsequently facilitate the healing of deeply disturbed and potentially harmful agents
3. To assist when other methods of approval may be oversaturated

Additionally your honor, I would like to ask the opinion of the general public be considered

IceCarim:
Why is public opinion relevant to constitutional adjudication?

Vortexion:

Wherein 18 individuals sourced from outside and within the nation claimed they support the passing of the Swag Messiah build

To prevent the formation of deeply-rooted corruption stemming from the power of the select few, your honor

IceCarim:
See, eg, *West Virginia Board of Education v Barnette*:

The very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of political controversy, to place them beyond the reach of majorities and officials and to establish them as legal principles to be applied by the courts. One's right to life, liberty, and property, to free speech, a free press, freedom of worship and assembly, and other fundamental rights may not be submitted to vote; they depend on the outcome of no elections.

I don't follow
The constitution and amendments to it are passed by a supermajority
Where are you getting this power of a select few?
By my recollection, the constitution was passed unanimously

CommradePotatoe:
As I currently see this act your honor, I see little legitimate need for any of these powers. A Swag Messiah could simply run for membership in the forum and be able to vote on any bill at any time. At this time in Cortesian history, everyone who has run for membership in the forum has won. While I do not wish to deny the possibility of loss, simplier means exist for the same power. Vibe Checking individuals could in theory provide some benefit as described by the respondent in this case, but I ask the court to bring into question the scientific backing of such processes. Finally, the executions only provide harm, they do not fufill any legitimate governmental need. Besides the fact of going way beyond the scope of Cortesia Del Mar's jurisdiction, the power to permanently end someone in

the real world is a horrifying thing to consider. How it would even be carried out should terrify us all to no end.

Vortexion:
Objection your honor

IceCarim:
That kind of defeats your point, no? You're suggesting we consider external public opinion
And I have no idea what it means to say a supermajority governing a group tens times their size
The very concept of a supermajority means the group itself decides
So actually, if the constitution passed unanimously among the citizenry, the people governed themselves quite directly

Vortexion:
Your honor I have nothing else to say

IceCarim:
Thank you for taking the time to answer the court's questions so far

I have a difficulty with your first argument. Is it impermissible for a Bill to establish new offices when the goal can be accomplished through existing offices?
Let me give you an example. Suppose right now the NF can hold the President accountable, is it impermissible to create a new office to help the NF do that?
And do you have anything to say about the sheer breadth of the provisions in the Bill? Are the powers impermissibly vague?

CommradePotatoe:
No, it isnt.
I simply fail to see how the ability to vote on bills proposed on a singular day would in any means fulfill a need for legislative discourse, when proper

means for achieving such need are already entrenched in our constitution that account for our democratic nature

Your honor, I would say that all the powers of the Swag Messiah are very poorly defined. While an attempt is made in Section 3 of the act, I feel that the powers can be construed far beyond any reasonable limit.
Section 6, Subsection (a) of the act states "The Swag Messiah shall have the authority to promulgate regulations necessary for
the implementation of the duties and powers outlined in this Act." This would in effect make the Swag Messiah able to legislate freely without any checks or balances

If this act is found constitutional, the executive would be able to grant immense powers to a single individual for an extremely long period of time

IceCarim:

Thank you for your submissions
On the issue of severability: suppose this court declares any of the challenged powers of the Swag Messiah invalid, should we strike down the whole act? @Vortexion (ass edition) @COMBOT

CommradePotatoe:
I believe the whole act should be striked due to Section 6 of the act, which would allow the Swag Messiah to establish any number of laws pertaining to powers not deemed unconstitutional

IceCarim:
The Court is prepared to give its judgment. Between now and the handing down of judgment, any interested party is welcome to make further submissions

Brick_WallGaming:
Your Honor, if i may voice my opinion?

IceCarim:
Please do

Brick_WallGaming:
While i dont think public shaming is realistically a punishment in of itself, ive been on social media platforms long enough to know it could deter someone from behhaving in a destructive manor. I still do not agree with it being used as a method of punishment, but realistically it can deter some people

IceCarim:
Thank you. My concern then turns to this. What form does public shaming take? The Bill gives the Swag Messiah a very broad discretion
Do you think it's important to confine the forms that public shaming can take?
And is it reasonable to trust the Swag Messiah with deciding whom to publically shame?
What brakes are there on an arbitrary exercise of that power?
And can the impact on human dignity be justified?

Brick_WallGaming:
I do agree if we where to enact the "Public Shaming" it should be more clearly defined
in the hypothetical scenario we where to enact it, i would do something like give people a "vibe check failed" role for a period of 24 hours.
it would fit the comedic intent of the bill, while not actually being a major way of shaming

IceCarim:
I see
and if we take the ordinary meaning of public shaming as a regular person would understand it, would it come across as something comedic?
or would we think of it as something more severe?

Brick_WallGaming:

Realistically, no.
Yeah, i would see public shaming as something a bit more severe
EG:when people get called out on platforms such as Twitter(X) for saying stupid things

IceCarim:
That makes sense
Thank you for your helpful submissions
If you or anyone else has anything to add, please do

Brick_WallGaming:
No problem :)

Yodabird19:
I think public shaming in a serious context carries the risk of harrasment and future assault

Brick_WallGaming:
I agree with this statement. Public Shaming can be done in a lightearted manner but i dont think it's something we should actually glorify as a nation. That can be a slippery slope, leading to normalising bullying within the nation
that would be blatantly unconstitutional

CommradePotatoe:
I think it would meet the definition of punishment, but I think it also meets the definiton of cruel. Punishments should exist to deter crimes, but they shouldn't be cruel. I believe this to be a fundamental value of democracies such as our own.

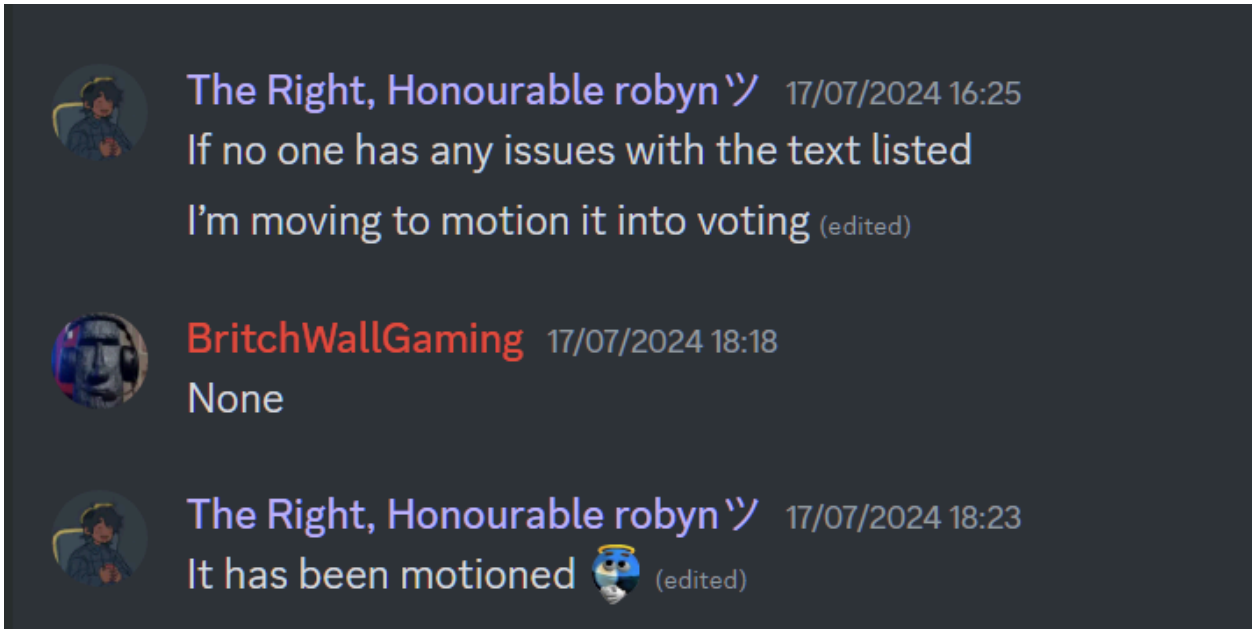
IceCarim:
@President @Vice President this is an important question
Did any of you raise concerns about the Bill during its consideration period in the National Forum?

Brick_WallGaming:
To my knowledge your honor, neither did.
i may have missed any messages where concerns where raised, but no discussion ever took place until after the bill passed as far as i remember.

IceCarim:
Then I'm not sure how the challenge can be well-founded
The basis for referral says
"If either the President or the Vice President dispute the constitutional validity of all or part of a bill submitted to them for their signatures, **and their reservations were expressed during the consideration of the bill**, they may refer the bill to the Supreme Court for a decision on its constitutional validity in respect of their reservations."

CommradePotatoe:
Would this qualify your honor
[https://discord.com/channels/424608625357488141/1262834738280792094/1262843145817690294]

IceCarim:
The muted response to this question is significant



Brick_WallGaming:
I was going to mention this, you made no further effort after this.

CommradePotatoe:
I do not deny this fact

Brick_WallGaming:
I do remember you mentioned you went on vacation around the time of this bills voting. i think this is a fairly good reason for you having not objected in detail. However, i do think you couldve asked to delay voting due to this fact so we could discuss this in further detail. Hindsight is 20/20 though, and that's why we do have things like this in place

CommradePotatoe:
Yeah this is not an ideal situation due in part to my own lack of focus regarding the bill during its time in the NF. I ask the court for leniency in this instance.

AvaniSpades: 💀

IceCarim:
The Court is ready to deliver its judgment
@National Forum @Vortexion (ass edition) The Supreme Court today hands down judgment in CommradePotatoe v Vortexion, a challenge to the Swag Messiah Bill. The judgment is brought to the attention of interested parties.

(end)